M/S. Psr Green Power Project (Pvt.) Ltd vs Andhra Pradesh Electricity Regulatory ... on 22 July, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 120 of 2007 & IA No. 159 of 2007

Dated: July 22, 2009

Present: Hon'ble Mrs. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

M/s. PSR Green Power Project (Pvt.) Ltd. - Appellant
Versus
Andhra Pradesh Electricity Regulatory Commission 7 Ors. -Respondent(s)

Counsel for the appellant(s) : Mr. Abid Ali Beeran

Counsel for the Respondent(s) : Mr. A. Subba Rao for AP Transco

Mr. K. V. Mohan for APERC

ORDER

Mr. Abid Ali Beeran submits that he has no instructions from his client, the appellant. Mr. Beeran says that in the absence of instructions from his client he wants to withdraw from the appeal.

On behalf of respondent Nos. 2 & 4 an affidavit has been filed. The Affidavit is sworn by Mr. L. Manohar Reddy, Chief General Manager of APCPDCL, respondent No.4 and a successor of respondent No.2. It is stated in this affidavit that the appellant has not so far commissioned the project of power generation and therefore is not affected by the impugned tariff order which was for the period ending 31.03.2009.

On the last date of hearing the same fact was stated at the bar. There is no denial of this fact.

In view of want of prosecution, on behalf of the appellant, the appeal is dismissed for want of prosecution.

(H.L. Bajaj) (Justice Manju Goel)
Technical Member Judicial Member

SH/RB